

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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(Judge's initials) (Date)

(48)

Tentative Ruling

Re: **Ramirez v. Creative Alternatives School et al.**
Superior Court Case No. 25CECG05129

Hearing Date: September 23, 2026 (Dept. 502)

Motion: Defendants' Demurrer to the First Amended Complaint and Defendants' Motion to Strike

Tentative Ruling:

To grant defendants Creative Alternatives School and Justin Cuaya-Beltrans' motion to strike the First Amended Complaint without leave to amend.

To find the demurrer to the First Amended Complaint moot.

Defendants are directed to file a motion to dismiss.

Explanation:

Meriah Ramirez has filed a complaint in propria persona on behalf of herself and minor S.A. While the Court did sign orders appointing her as the Guardian Ad Litem for the minor on December 4, 2025, a non-attorney cannot act in propria persona to represent minors, even where that person has been appointed as their Guardian Ad Litem. (Bus. & Prof. Code, § 6125; *J.W. v. Superior Court* (1993) 17 Cal.App.4th 958, 965-968.) As such, while Meriah Ramirez may represent herself, counsel must be obtained for the minor child.

The causes of action in the First Amended Complaint are only on behalf of minor S.A. Thus, the court strikes the First Amended Complaint in its entirety.

The demurrer to the First Amended Complaint is thus rendered moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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